



CHAPTER civ.

An Act to confirm certain Pilotage Orders made by the Board of Trade under the Pilotage Act 1913 relating to the Pilotage Districts of Cork Drogheda Dundalk Galway and Newry and Carlingford.

A.D. 1920.

[4th August 1920.]

WHEREAS the Board of Trade have made the Pilotage Orders set forth in the schedule hereto under the provisions of the Pilotage Act 1913 but the same do not take effect unless and until confirmed by Parliament:

2 & 3 Geo. 5.  
c. 31.

And whereas it is expedient that the said Pilotage Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Pilotage Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Confirma-  
tion of  
Orders in  
schedule.

2. This Act may be cited as the Pilotage Orders Confirmation (No. 2) Act 1920.

Short title.



[Ch. civ.]

*Pilotage Orders Confirmation* [10 & 11 GEO. 5.]  
(No. 2) Act, 1920.

A.D. 1920.

SCHEDULE of Orders.

1. CORK.
2. DROGHEDA.
3. DUNDALK.
4. GALWAY.
5. NEWRY AND CARLINGFORD.



SCHEDULE.

A.D. 1920.

Cork.

**CORK PILOTAGE ORDER.**

1.—(1) The pilotage district hitherto known as the Cork Pilotage District shall be re-arranged. Pilotage district.

(2) The limits of the Cork Pilotage District (hereinafter referred to as "the Pilotage District") shall be as follows:—

(a) The limit to seaward shall be from a point 5 miles S.S.E. of the Old Head of Kinsale Lighthouse in a true N.E. by E. direction to a point 5 miles true S.S.E. of Knockadoon Head thence in a true N.N.W. direction to the Knockadoon Head:

(b) The limit to landward shall be at Parliament and St. Patrick Bridges in the city of Cork.

2. The pilotage authority for the Pilotage District shall be the Cork Harbour Commissioners (hereinafter referred to as "the Authority") as constituted by the Cork Harbour Act 1820 and amending Acts. Pilotage authority.

3. Pilotage shall be compulsory in that portion of the Pilotage District which lies above an imaginary line drawn from the centre of the Boat Harbour at Queenstown to the Spit Lighthouse thence to the east extreme point of Fort Westmoreland and from the south side of Fort Westmoreland to the Martello Tower at Ringaskiddy including the whole of the River Lee. Limits of compulsory pilotage.

4.—(1) There shall be constituted a pilotage committee (hereinafter referred to as "the committee") of the Authority consisting of members appointed and elected as follows:— Pilotage committee.

(a) Six members appointed by the Authority from among their own members of whom one shall be nominated as chairman and of whom not less than two shall be shipowners or other persons having practical experience of shipping or nautical affairs:

(b) Two members elected in manner hereinafter provided by the pilots licensed for the Pilotage District (hereinafter referred to as "the licensed pilots") from among persons who either are or have been licensed pilots for the district and who have not been dismissed or suspended from the service.

(2) The members of the committee shall be appointed and elected respectively at the times and in manner in the schedule hereto provided.

(3) The persons who are at the commencement of this Order members of the existing pilotage committee of the Authority shall until the committee are constituted under the provisions of this Order be the committee as though they had been appointed or elected thereunder.



[Ch. civ.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]  
(No. 2) Act, 1920.

A.D. 1920.

*Cork.*

Powers of  
pilotage  
committee.

5. The Authority may delegate to the committee any of their powers or duties under the Pilotage Act 1913. The decisions of the committee on questions so delegated shall not except in so far as they involve financial considerations require confirmation by the Authority but the committee shall report their proceedings to the Authority.

Proceedings  
of committee.

6.—(1) The chairman if present shall preside at every meeting of the committee. If the chairman is absent at any meeting such other member as the members then present choose shall preside.

(2) Every question at a meeting of the committee shall be decided by a majority of votes of the members of the committee present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(3) The quorum of the committee shall be four.

(4) No member of the committee shall take part in any proceedings of the committee relating to any question affecting himself personally.

(5) Subject to the provisions of this Order the committee may regulate their own procedure.

(6) No act or proceeding of the committee shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.

Period of  
office.

7. Members of the committee shall hold office from the date of their appointment or election respectively until such time as their successors may be appointed or elected respectively.

Retiring mem-  
bers eligible for  
re-appointment  
or re-election.

8. Members of the committee going out of office may be re-appointed or re-elected respectively.

*Pilot. Boats.*

Power to  
provide or  
arrange for  
supply of  
pilot boats.

9. The Authority may from time to time if they think fit purchase hire or build and equip maintain and work or enter into agreements or arrangements with any person for the supply use maintenance and working of such boats or vessels as in the opinion of the Authority may be required for the efficient working of the pilotage service.

*Borrowing Powers.*

Power to  
raise money.

10.—(1) The Authority may in addition to the moneys which under the Acts relating to Cork Harbour and in force at the commencement of this Order or any of them they are authorised to raise or borrow raise by the creation and issue of consolidated stock for the purpose of purchasing building and equipping pilot boats and vessels any sum or sums provided that the amount so raised or borrowed under the power conferred by this Order and for the time being outstanding shall not at any time exceed fifteen thousand pounds.



[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. civ.]  
(No. 2) Act, 1920.

(2) Any stock created under the power conferred by this Order or under the unexhausted powers of section forty-two of the Cork Harbour (Pilotage) Act 1892 shall carry interest at such rate as may be fixed by the Board of Trade at the time of creation. A.D. 1920.  
Cork.

(3) Stock so created may be charged on the pilotage revenues and shall be redeemable by the Authority at such time not being more than forty years from the issuing of the stock and in such manner as the Authority by the resolution authorising the creation of the stock shall declare.

(4) Subject as aforesaid the provisions of sections forty-three to fifty of the Cork Harbour (Pilotage) Act 1892 shall mutatis mutandis apply to any stock raised under the power conferred by this Order.

*Accounts.*

11. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connection with the pilotage service and with the provision and working of pilot boats. Separate  
accounts to  
be kept.

*General.*

12. Sections three to forty-one and fifty-one to fifty-nine of the Cork Harbour (Pilotage) Act 1892 shall cease to have effect and shall for the purposes of section fifty-nine of the Pilotage Act 1913 be deemed to be superseded. Provided that sections four to seven nine eleven to nineteen twenty-seven to thirty-three thirty-seven and forty of the Cork Harbour (Pilotage) Act 1892 shall notwithstanding such repeal as aforesaid remain in full force until the matters dealt with by such sections respectively shall be provided for by byelaws made under the Pilotage Act 1913. Repeal of  
enactments.

13. This Order shall come into force upon the day when the Act confirming this Order is passed. Commence-  
ment of  
Order.

14. This Order may be cited as the Cork Pilotage District Order 1920. Short title.

S C H E D U L E.

With respect to the appointment and election of the committee the following provisions shall have effect that is to say:—

1. The persons to be appointed by the Authority as members of the committee shall be chosen at a meeting of the Authority duly summoned for the purpose in the month of November 1920 and in the month of November in each succeeding year.

2.—(1) The members to be elected by the licensed pilots (hereinafter referred to as the "pilot members") shall be elected at meetings of the licensed pilots which shall take place in the month of November in the year 1920 and in each year thereafter at a time and place to be fixed by the Authority or failing them by the Board of Trade



A.D. 1920. and advertised ten days at least before the day appointed for such  
*Cork.* election in one or more of the newspapers published and circulating  
in the city of Cork.

(2) The Chairman of the Authority for the time being or a person nominated by him shall be the chairman of the meeting and the returning officer and shall preside at and regulate the proceedings at such meeting.

(3) Every licensed pilot shall be entitled to attend or to be represented at the meeting and to take part and vote in each election of pilot members thereat but this provision is not to authorise attendance to the prejudice of the pilot service.

(4) Candidates for the office of pilot member shall at such meeting be nominated and seconded by licensed pilots and if the number of persons so nominated does not exceed the number of persons to be elected the persons so nominated shall be deemed to be duly elected but if the number of persons nominated exceeds the number to be elected the election shall be decided by the majority of the licensed pilots present or represented at the meeting.

(5) Any licensed pilot not present at any election may by writing under his hand appoint any licensed pilot as proxy to represent him provided that all instruments in writing appointing such proxy shall be lodged with the secretary to the Authority not later than the day preceding the day of the meeting.

(6) Every licensed pilot present or represented at any election shall be entitled to as many votes as there are persons to be elected but shall not give more than one vote for any one candidate.

(7) The chairman of the meeting shall as soon as may be after the election certify in writing to the secretary to the Authority the name or names of the person or persons elected to be pilot members and all such persons shall thereupon become members of the committee.

(8) In case there is a failure to elect a pilot member at the first or any subsequent election the Board of Trade may appoint any licensed pilot to fill the vacancy and such person shall hold office as though he had been elected under the provisions of subsections 1 to 7 of this section.

(9) The costs charges and expenses of and preliminary and incidental to the election of pilot members shall be paid by the Authority.

3. In the event of any vacancy among the appointed or elected members of the committee arising otherwise than by effluxion of time the vacancy shall be filled as soon as may be thereafter in the manner prescribed for the annual appointment or election but any person so appointed or elected shall hold office only until the next annual appointment or election.



A.D. 1920.

**DROGHEDA PILOTAGE ORDER.**

*Drogheda.*

1. The limits of the Drogheda Pilotage District (hereinafter referred to as "the Pilotage District") shall be the waters of the sea and River Boyne between St. Mary's Bridge in the town of Drogheda and an imaginary line from Clogher Head in the county of Louth to Skerries in the county of Dublin.

Pilotage  
district.

2. The pilotage authority for the Pilotage District (hereinafter referred to as "the Authority") shall be the Commissioners of the Port and Harbour of Drogheda as constituted by the Act entitled "An Act for the improvement of the port and harbour of Drogheda" passed in the year 1842.

Pilotage  
authority.

3. Pilotage shall be compulsory within the Pilotage District.

Pilotage to be  
compulsory.

4. The Authority may appoint in such manner and subject to such conditions as they think fit a committee of their members not exceeding six in number of whom one shall be nominated as chairman and of whom three at least shall be shipmasters or other persons having practical experience of shipping or nautical matters.

Pilotage  
committee.

5. The Authority may delegate to the committee any of their powers or duties under the Pilotage Act 1913. The decisions of the committee on questions so delegated shall not require confirmation by the Authority but the committee shall report their proceedings to the Authority.

Powers of  
pilotage  
committee.

6.—(1) The chairman if present shall preside at every meeting of the committee. If the chairman is absent at any meeting such other member as the members then present choose shall preside.

Proceedings  
of com-  
mittee.

(2) Every question at a meeting of the committee shall be decided by a majority of votes of the members of the committee present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(3) The quorum of the committee shall be three.

(4) No member of the committee shall take part in any proceedings of the committee relating to any question affecting himself personally.

(5) Subject to the provisions of this Order the committee may regulate their own procedure.

(6) No act or proceeding of the committee shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.

7. Members of the committee shall hold office from the date of their appointment or election respectively until such time as their successors may be appointed or elected respectively.

Period of  
office.

8. Members of the committee going out of office may be re-appointed or re-elected respectively.

Retiring membe  
eligible for  
re-appointment;  
or re-election.



A.D. 1920.

*Drogheda.*  
Separate accounts  
to be kept.

Repeal.

9. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connection with the pilotage service.

10. The following provisions of the said Act of 1842 (that is to say) :—

Sections two hundred to two hundred and five sections two hundred and twenty-seven to two hundred and thirty-four (so far as they relate to pilotage);

Schedule G.;

and any other enactment or Order relating to pilotage in the Pilotage District shall cease to have effect and shall for the purposes of section fifty-nine of the Pilotage Act 1913 be deemed to be superseded.

Commence-  
ment of  
Order.

11. This Order shall come into force on the day when the Act confirming this Order is passed.

Short title.

12. This Order may be cited as the Drogheda Pilotage Order 1920.

### DUNDALK PILOTAGE ORDER.

*Dundalk.*

Pilotage  
district.

1. The limits of the Dundalk Pilotage District (herein-after referred to as "the Pilotage District") shall be the waters of the harbour and bay of Dundalk between the bridge of Dundalk and an imaginary line drawn between Dunany Point and Cooley Point in the county of Louth.

Pilotage  
authority.

2. The pilotage authority for the pilotage district (hereinafter referred to as "the Authority") shall be the Dundalk Harbour Commissioners as constituted by the Dundalk Harbour and Port Act 1855 (herein-after referred to as "the Act of 1855").

Pilotage to be  
compulsory.

3. Pilotage shall be compulsory within the Pilotage District.

Pilotage  
committee.

4.—(1) There shall be constituted a pilotage committee (herein-after referred to as "the committee") of the Authority consisting of seven members appointed and elected as follows:—

(a) Five members appointed by the authority of whom three shall be members of the Dundalk Harbour Commission one being nominated as chairman and two shall be persons registered at the port of Dundalk as shipowners or persons entitled as shareholders in shipping companies to vote at the election of commissioners under the Act of 1855 such two last-mentioned members to be appointed in preference from amongst the Dundalk Harbour Commissioners:

(b) Two members elected in manner herein-after provided by the pilots licensed for the pilotage district (herein-after referred to as "the licensed pilots") from among persons who either are or have been licensed pilots for the Pilotage District.



[10 & 11 GEO. 5.] *Pilotage Orders Confirmation*  
(No. 2) Act, 1920.

[Ch. civ.]

(2) The members of the committee shall be appointed and elected respectively in manner in the schedule hereto provided. A.D. 1920.

*Dundalk.*

5. The authority may delegate to the committee any of their powers or duties under the Pilotage Act of 1913. The decisions of the committee on matters so delegated to them shall not require confirmation by the Authority but the committee shall report their proceedings to the Authority. Powers of committee.

6.—(1) The chairman if present shall preside at every meeting of the committee. If the chairman is absent at any meeting such other member as the members then present choose shall preside. Proceedings of committee.

(2) Every question at a meeting of the committee shall be decided by a majority of votes of the members of the committee present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(3) The quorum of the committee shall be four.

(4) No member of the committee shall take part in any proceedings of the committee relating to any question affecting himself personally.

(5) Subject to the provisions of this Order the committee may regulate their own procedure.

(6) No act or proceeding of the committee shall be invalid on account of any vacancy in the number of the committee at the time of such act or proceeding or on account of the appointment or election of any member having been defective.

7. Members of the committee shall hold office from the date of their appointment or election respectively until such time as their successors may be appointed or elected respectively. Period of office.

8. Members of the committee going out of office may be re-appointed or re-elected respectively. Retiring members eligible for re-appointment or re-election.

9. The Authority may out of any moneys coming into their hands as harbour authority under the Act of 1855 without prejudice to any other of their powers pay the whole or any part of the administrative expenses incurred by them as pilotage authority and may also contribute towards any pilots benefit fund established in the Pilotage District such sums not exceeding 150*l.* in any year as they think fit. The Authority authorised to contribute to expenditure and to benefit fund.

10. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connection with the pilotage service. Separate accounts to be kept.

11. In addition to the powers of the Authority to make byelaws regulating the system to be adopted for the supply of pilots they may from time to time if it shall appear desirable so to do build Power to provide or arrange for supply of pilot boats.



[Ch. civ.]      *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]  
(No. 2) Act, 1920.

- A.D. 1920.      purchase or hire and employ in the pilotage service one or more  
Dundalk.      pilot cutters and may demand such sum of money from the licensed  
pilots for the use thereof as the Authority may think fit.
- Repeal.      12. Sections 87 to 99 of the Act of 1855 and any other enactment  
or order relating to pilotage in the Pilotage District shall cease to  
have effect and shall for the purposes of section 59 of the Pilotage  
Act 1913 be deemed to be superseded.
- Date of com-  
mencement of  
Order.      13. This Order shall come into force on the day when the Act  
confirming this Order is passed.
- Short title.      14. This Order may be cited as the Dundalk Pilotage Order 1920.

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S C H E D U L E.

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With respect to the appointment and election of the members of the committee the following provisions shall have effect (that is to say):—

1. The persons to be appointed by the Authority as members of the committee shall be chosen at the first meeting of the Authority held after their annual election in the year 1920 and each year thereafter.

2.—(1) The members to be elected by the licensed pilots (hereinafter referred to as "the pilot members") shall be elected at meetings of the licensed pilots which shall take place in the month of September in the year 1920 and each year thereafter at a time and place to be fixed by the Authority or failing them by the Board of Trade and advertised ten days at least before the day appointed for such election in one or more of the newspapers published and circulating in the town of Dundalk.

(2) The Secretary of the Authority or failing him some other person to be appointed by the Authority shall be the chairman of the meeting and the returning officer and shall preside at and regulate the proceedings at such meeting.

(3) Every licensed pilot shall be entitled to attend or to be represented at the meeting and to take part and vote in each election of pilot members thereat but this provision is not to authorise attendance to the prejudice of the pilot service.

(4) Candidates for the office of pilot member shall at such meeting be nominated and seconded by licensed pilots and if the number of persons so nominated does not exceed two the persons so nominated shall be deemed to be duly elected but if the number of persons



nominated exceeds two the election shall be decided by the majority of the licensed pilots present or represented at the meeting. A.D. 1920.

*Dundalk.*

(5) Any licensed pilot not present at any election meeting may by writing under his hand appoint any licensed pilot as proxy to represent him provided that all instruments in writing appointing such proxy shall be lodged with the Authority not later than the day preceding the day of the meeting.

(6) Every licensed pilot present or represented at any election shall be entitled to two votes but shall not give more than one vote for any one candidate.

(7) The chairman of the meeting shall as soon as may be after the election certify in writing to the Authority the name or names of the person or persons elected to be pilot members and all such persons shall thereupon become members of the committee.

(8) In case there is a failure to elect a pilot member at the first or any subsequent election the Board of Trade may appoint any licensed pilot to fill the vacancy and such person shall hold office as though he had been elected under the provisions of subsections (1) to (7) of this section.

(9) The costs charges and expenses of and preliminary and incidental to the election of pilot members shall be paid by the Authority.

3. In the event of any vacancy among the appointed or elected members of the committee arising otherwise than by effluxion of time the vacancy shall be filled as soon as may be thereafter in the manner prescribed for the annual appointment or election but any person so appointed or elected shall hold office only until the next annual appointment or election.

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### GALWAY PILOTAGE ORDER.

*Galway.*

1. The limits of the Galway Pilotage District (hereinafter referred to as "the Pilotage District") shall be the waters of the bay of Galway within an imaginary line drawn from Gulin Head to the western point of the Aran Islands and thence to Hag's Head including the docks and works of the Galway Harbour Commissioners at Galway. Pilotage district.

2. The pilotage authority for the Pilotage District shall be the Galway Harbour Commissioners as constituted under the Galway Harbour and Port Act 1853 (hereinafter referred to as "the Authority"). Pilotage authority.

3. Pilotage shall be compulsory within that part of the Pilotage District which lies between the roadstead at Galway and the docks and works of the Authority. Compulsory pilotage.

4. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connection with the pilotage service. Separate accounts to be kept.



[Ch. civ.]      *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]  
(No. 2) Act, 1920.

A.D. 1920.

*Galway.*  
Repeal.

5. The following enactments (that is to say):—

Section eight down to and including the words “Hag’s Head” sections sixty-two to seventy-two inclusive and Schedule F. of the Galway Harbour and Port Act 1853;

Section fifty-three of the Galway Harbour Act 1860;

and any other enactment or order so far as it relates to pilotage in the Pilotage District shall cease to have effect and shall for the purposes of section fifty-nine of the Pilotage Act 1913 be deemed to be superseded.

Commence-  
ment of  
Order.

6. This Order shall come into force on the day when the Act confirming this Order is passed.

Short title.

7. This Order may be cited as the Galway Pilotage Order 1920.

*Newry and  
Carlingford.*

Pilotage  
district.

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NEWRY AND CARLINGFORD PILOTAGE ORDER.

1.—(1) The pilotage districts hitherto known as the Newry Pilotage District and the Carlingford Lough Pilotage District shall be amalgamated and shall form one district which shall be called and is in this Order referred to as “the Newry and Carlingford Pilotage District.”

(2) The limits of the Newry and Carlingford Pilotage District shall be the waters of Carlingford Lough and of the river from the outer gates of the second locks on the canal adjoining the military barracks in the town of Newry to an imaginary line drawn from Cranfield Point on the northern side of the entrance to the lough to Hellyhunter Rock and thence to Ballagan Point on the southern side of the entrance to the lough.

Pilotage  
authority.

2.—(1) There shall be established for the Newry and Carlingford Pilotage District a pilotage authority which shall be a body corporate by the name of the Newry and Carlingford Pilotage Authority (hereinafter referred to as “the Authority”) and shall consist of members appointed and elected as follows:—

Three persons appointed by the Newry Port and Harbour Trustees (hereinafter referred to as “the Trustees”) from among their own members;

Three persons appointed by the Harbour of Carlingford Lough Improvement Commissioners (hereinafter referred to as “the Commissioners”) from among their own members;

Two persons elected in manner hereinafter provided by the pilots licensed for the Newry and Carlingford Pilotage District (here-



- inafter referred to as "the licensed pilots") from among persons who either are or have been licensed pilots for the district;  
Two shipowners elected in manner hereinafter provided by shipowners of Newry and Carlingford Lough as hereinafter defined.
- (2) The members of the Authority shall be appointed and elected respectively in manner in the First Schedule hereto provided.
- 3.—(1) The chairman of the Authority shall be appointed by the Authority from among their members.  
(2) The chairman if present shall preside at every meeting of the Authority. If the chairman is absent from any meeting such other member as the members then present choose shall preside.  
(3) Every question at a meeting of the Authority shall be decided by a majority of the votes of the members of the Authority present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.  
(4) The quorum of the Authority shall be four.  
(5) No member of the Authority shall take part in any proceedings of the Authority relating to any question affecting himself personally.  
(6) Subject to the provisions of this Order the Authority may regulate their own procedure.  
(7) No act or proceeding of the Authority shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.
4. Pilotage shall be non-compulsory in the Newry and Carlingford Pilotage District.
5. Members of the Authority shall hold office until such time as their successors may be appointed or elected respectively.
6. Members of the Authority going out of office may be reappointed or re-elected respectively.
7. Until all the members of the Authority have been appointed or elected under the provisions of this Order the Trustees and the Commissioners respectively shall retain all their respective rights powers and duties as existing prior to the commencement of this Order.
8. This Order shall come into force upon the day when the Act confirming this Order is passed.
- 9.—(1) This Order may be cited as the Newry and Carlingford Pilotage Order 1920.  
(2) The enactments specified in the Second Schedule to this Order shall cease to have effect and shall for the purposes of section fifty-nine of the Pilotage Act 1913 be deemed to be superseded.

A.D. 1920.

*Newry and  
Carlingford.*

Proceedings  
of the  
Authority.

Pilotage to  
be non-com-  
pulsory.

Period of  
office.

Retiring mem-  
bers eligible for  
reappointment  
or re-election.

Trustees and  
Commissioners  
to retain their  
respective  
powers until  
all members  
of Authority  
appointed or  
elected.

Commence-  
ment of  
Order.

Short title  
and repeal.



A.D. 1920.

Newry and  
Carlingford.SCHEDULES.FIRST SCHEDULE.

With respect to the appointment and election of the Authority the following provisions shall have effect that is to say:—

1. The appointed members shall be appointed by the Trustees and the Commissioners respectively at the first meetings held by them respectively after their annual elections in 1920 and in the months of December and September respectively in every third year thereafter.

2.—(1) The members to be elected by the licensed pilots (hereinafter referred to as the "pilot members") shall be elected at meetings of the licensed pilots which shall take place on or within seven days after the sixteenth day of November in the year 1920 and in every third year thereafter at a time and place to be fixed in the case of the first election by the Trustees and the Commissioners or failing them by the Board of Trade and thereafter by the Authority and advertised ten days at least before the day appointed for such election in one or more of the newspapers published and circulating in the town of Newry.

(2) The Secretary of the Trustees for the first election and thereafter the Secretary of the Authority shall be the chairman of the meeting and the returning officer and shall preside at and regulate the proceedings at such meeting.

(3) Every licensed pilot shall be entitled to attend or to be represented at the meeting and take part and vote in each election of pilot members thereat but this provision is not to authorise attendance to the prejudice of the pilot service.

(4) Candidates for the office of pilot member shall at such meeting be nominated and seconded by licensed pilots and if the number of persons so nominated does not exceed the number of persons to be elected the persons so nominated shall be deemed to be duly elected but if the number of persons nominated exceed the number to be elected the election shall be decided by the majority of the licensed pilots present or represented at the meeting.

(5) Any licensed pilot not present at any election may by writing under his hand appoint any licensed pilot as proxy to represent him provided that all instruments in writing appointing such proxy shall be lodged in the case of the first election with the Trustees and the Commissioners and thereafter with the Authority not later than the day preceding the day of the meeting.

(6) Every licensed pilot present or represented at any election shall be entitled to as many votes as there are persons to be elected but shall not give more than one vote for any one candidate.



[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. civ.]  
(No. 2) Act, 1920.

(7) The chairman of the meeting shall as soon as may be after the election certify in writing in the case of the first election to the Trustees and the Commissioners and thereafter to the Authority the name or names of the person or persons elected to be pilot members and all such persons shall thereupon become members of the Authority.

A.D. 1920.

*Newry and  
Carlingford.*

(8) In case there is a failure to elect a pilot member at the first or any subsequent election the Board of Trade may appoint any licensed pilot to fill the vacancy and such person shall hold office as though he had been elected under the provisions of subsections (1) to (7) of this section.

(9) The costs charges and expenses of and preliminary and incidental to the election of pilot members shall be paid by the Authority.

3. The members to be elected by shipowners of Newry and Carlingford Lough shall be elected at meetings of the electors of shipowners' trustees qualified as provided by section twelve of the Newry Port and Harbour Trust Act 1901 on the same day as the election of pilot members and the provisions of subsections (2) to (7) of section two of this schedule with the substitution of such electors for licensed pilots shall so far as applicable and mutatis mutandis regulate such elections.

4. In the event of any vacancy among the appointed or elected members of the Authority arising otherwise than by effluxion of time the vacancy shall be filled as soon as may be thereafter in the manner prescribed for the annual appointment or election but any person so appointed or elected shall hold office only until the next annual appointment or election.

SECOND SCHEDULE.

ENACTMENTS SUPERSEDED.

| Session and Chapter.    | Short Title.                                             | Extent of Repeal.                                                                 |
|-------------------------|----------------------------------------------------------|-----------------------------------------------------------------------------------|
| 10 Geo. 4.<br>c. 126.   | —                                                        | So much of sections 135 to 139 as relates to pilots or pilotage.                  |
| 27 & 28 Vict.<br>c. 93. | The Pier and Harbour Orders Confirmation Act 1864.       | The provision for appointment of joint committees to regulate bar pilots.         |
| 27 & 28 Vict.           | The Harbour of Carlingford Lough Improvement Order 1864. | So much of section 23 as relates to a pilotage authority or pilotage authorities. |

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